

21STCV01676 21STCV01676

County: los-angeles

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Case Number: 21STCV01676 Hearing Date: August 12, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

David Pacheco Mata, et al.,

Plaintiffs,

v.

Eurostar, et al.

Defendants.

Case Number Department

21STCV01676 107

COURT'S [TENTATIVE]

ORDER RE:

Motion to Confirm Minor's Compromise

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE:]

Deny

I.

BACKGROUND

On

or about October 20, 2019, Plaintiffs David Pacheco Mata, Consuelo Tolentino, Marisela Mata, a minor, by and through her guardian ad litem David Pacheco Mata, and David Mata, a minor by and through his guardian ad litem David Pacheco Mata (“Plaintiffs”) were at Defendants Eurostar, Tanzey Properties II, LLC (“Tanzey”), Alon Realty, LLC and WSS’s property, a shoe warehouse (the “Property”). (First Amended Complaint [“FAC”] ¶ 17.) Defendants Hazel Pacheco Gonzalez and Ana Cabreranoriega were involved in a car accident, which resulted in a fire hydrant breaking that caused a water geyser. (Complaint ¶ 18.) The Property flooded and the roof collapsed. (FAC ¶ 24.) Plaintiffs sustained injuries. (FAC ¶ 24.)

On

January 14, 2021, Plaintiffs filed a complaint against Defendants Eurostar, Tanzey, Alon Realty, LLC, WSS, City of Los Angeles, Hazel Pacheco Gonzalez, Ana Cabreranoriega, and Does 1 to 50, alleging causes of action for: (1) negligence; (2) negligent infliction of emotional distress; (3) negligence, premise liability; and (4) negligent hiring, training, supervision and retention.

On

April 8, 2022, Plaintiffs filed a first amended complaint against Defendants Eurostar, Tanzey, Alon Realty, LLC, WSS, City of Los Angeles, Hazel Pacheco Gonzalez, Ana Cabreranoriega, and Does 1 to 50, alleging causes of action for: (1) negligence; (2) negligent infliction of emotional distress; (3) negligence, premise liability; and (4) negligent hiring, training, supervision and retention.

On

December 15, 2025, Plaintiffs filed a notice of settlement of entire case.

On

July 20, 2026, Petitioner David Pacheco Mata (“Petitioner”) filed a petition

for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability (the "Petition"). As of August 7, 2026, no opposition has been filed.

II.

LEGAL

STANDARD

"An agreement to settle or compromise a claim made by a minor 'is valid only after it has been approved, upon the filing of a petition, by the superior court . . . ' in the county where the minor resides or the action could have been brought." (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1337.)

"[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests. . . . [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (Goldberg v. Superior Court (1994) 23 Cal.App.4th 1378, 1382.)

"A petition for court approval of a compromise or covenant not to sue under Code of Civil Procedure section 372 must comply with rules 7.950 or 7.950.5, 7.951, and 7.952." (Cal. Rules of Court 3.1384(a).) The petition "must be verified by the petitioner and must contain a full disclosure of all information that has any bearing on the reasonableness of the compromise, covenant, settlement, or disposition." (Cal. Rules of Court, rule 7.950.) "The person petitioning for approval of the compromise of the claim on behalf of the minor or person with a disability and the minor or person with a disability must attend the hearing on the petition unless the court for good cause dispenses with their personal appearance." (Cal. Rules of Court, rule 7.952(a).)

"An order for the deposit of funds of a minor or a person with a disability, and a petition for the withdrawal of such funds, must comply with rules 7.953 and 7.954." (Cal. Rules of Court, rule 3.1384(b).)

California Rules of

Court, rule 7.955(a) requires the court to use "a reasonable fee standard when

approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability" and requires that the court "give consideration to the terms of any representation agreement made between the attorney and the representative of the minor . . . and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events."

California Rules of Court, rule 7.955(b) sets forth fourteen nonexclusive factors the court may consider in determining a reasonable attorney's fee. Rule 7.955(b)'s factors include,

(1)

The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.

(2)

The amount of the fee in proportion to the value of the services performed.

(3)

The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.

(4)

The amount involved and the results obtained.

(5)

The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.

(6)

The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.

(7)

The experience, reputation, and ability of the attorney or attorneys performing the legal services.

(8)

The time and labor required.

(9)

The informed consent of the representative of the minor or person with a disability to the fee.

(10)

The relative sophistication of the attorney and the representative of the minor or person with a disability.

(11)

The likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.

(12)

Whether the fee is fixed, hourly, or contingent.

(13)

If the fee is contingent:

(A)

The risk of loss borne by the attorney;

(B)

The amount of costs advanced by the attorney; and

(C)

The delay in payment of fees and reimbursement of costs paid by the attorney.

(14)

Statutory requirements for representation agreements applicable to particular cases or claims.

(Cal.

Rules of Court, rule 7.955(b).)

“A petition requesting court approval and allowance of an attorney’s fee under (a) must include a declaration from the attorney that addresses the factors listed in (b) that are applicable to the matter before the court.” (Cal. Rules of Court, rule 7.955(c).)

III.

DISCUSSION

The

Petition is properly filed on Form MC-350 and is verified by Petitioner. (Petition pdf p. 10.) Marisela Mata (“Minor Claimant”) settled with WSS (Eurostar)/Tanzey Properties, Hazel Tatiana Pacheoco-Gonzalez, Ana Laura Cabrera Noriega, and Nationwide MedPay/Tanzey MedPay for \$322,142.85. (Petition ¶ 10 pdf p. 3.) On October 20, 2019, a car collided with a fire hydrant, causing water to spray upwards and the roof of Warehouse Shoe Sale to collapse on Minor Claimant. (Petition ¶¶ 4-5, pdf p. 2.) Minor Claimant sustained a broken right leg and emotional trauma. (Petition ¶ 6 pdf p. 2.) Minor Claimant received care and treatment for the injuries. (Petition ¶ 7 pdf p. 2.) Minor Claimant has recovered completely and there are no permanent injuries. (Minor Claimant ¶ 8 pdf p. 2.)

The

total amount offered by all defendants to others is \$4,837,664.48. (Petition ¶ 11 pdf p. 3.) Plaintiff Consuelo Tolentino is to receive \$2,359,643.85, Petitioner is to receive \$2,359,642.85, and Plaintiff David Mata is to receive \$118,378.78. (Petition ¶ 11 pdf p. 3.) The reasons for the apportionment are described in Attachment 11b(6). (Petition ¶ 11 pdf p. 3.) Attachment 11b(6) states:

Petitioner

is the minor’s father. Petitioner, the minor, the minor’s mother, and the minor’s brother were all plaintiffs in this action arising out of the same incident. After evaluating the injuries, damages, and available insurance coverage, the parties agreed to separate settlement amounts for each claimant. The minor’s settlement was independently negotiated based on the minor’s injuries and damages and is fair, reasonable, and in the minor’s best interests. The settlement amounts allocated to the other claimants do not reduce, impair, or otherwise adversely affect the minor’s recovery.

(Petition

Attachment 11b(6) pdf p. 12.)

The

total amount of medical expenses before any reductions is \$64,895.84. (Petition ¶ 12 pdf p. 4.) After reductions, the total amount of medical expenses to be paid or reimbursed from the proceeds is \$34,762.88. (Petition ¶ 12 pdf p. 4.)

Minor

Claimant's counsel requests \$80,535.71 in attorneys' fees and \$448.00 in costs. (Petition ¶ 13 pdf p. 5.)

The

balance of the proceeds of settlement or judgment available for Minor Claimant is \$206,396.26. (Petition ¶ 16 pdf p. 6.) This sum is to be invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the court. (Petition ¶ 18b pdf p. 8.) The terms and conditions of the annuity are specified in Attachment 18b(3). (Petition ¶ 18b pdf p. 8; Attachment 18b(3) pdf pp. 34-36.)

The

Petition contains multiple deficiencies.

Paragraph

7 lists the medical providers that treated Minor Claimant but does not describe Minor Claimant's care and treatment. (Petition ¶ 7 pdf p. 2.) Paragraph 7 must summarize the treatment Minor Claimant received for the injuries described in paragraph 6.

The

sums listed in paragraph 11b(5) do not add up to \$4,837,664.48. (Petition ¶ 11 pdf p. 3.)

Attachment

12b(5) states Anthony Bledin - Granada Hills Radiology charged \$200 and the negotiated reduction was \$100. (Petition Attachment 12b(5) pdf p. 22.)

Attachment 12b(5) further states the amount to be paid from the proceeds is \$200. (Petition Attachment 12b(5) pdf p. 22.) If the amount charged was \$200 and the negotiated reduction was \$100, then the amount to be paid would be \$100, not \$200.

The

medical expenses listed as the amounts to be paid from the proceeds of settlement or judgment in paragraph 12 and Attachment 12b(5) do not total \$19,496.00. (Petition ¶ 12 pdf pp. 4-5, Attachment 12b(5) pdf p. 22.)

The

Petition states Minor Claimant's counsel has not received attorney's fees or other compensation in addition to that requested in this petition for services provided in connection with the claim giving rise to this petition. (Petition ¶ 17(c) pdf p. 7.) Similarly, the Petition states Minor Claimant's counsel is not representing or employed by any other party or any insurance carrier involved in the matter. (Petition ¶ 17(e) pdf p. 7.) Finally, the Petition states Minor Claimant's counsel does not expect to receive attorney's fees or other compensation in addition to that requested in this petition for services provided in connection with the claim giving rise to this petition. (Petition ¶ 17(f) pdf p. 7.) Minor Claimant's counsel represents the other Plaintiffs in this matter. Minor Claimant's counsel should confirm they answered the questions in paragraph 17 correctly.

The

Petition does not state how many pages are attached. (Petition ¶ 23 pdf p. 10.)

Minor

Claimant's counsel's declaration does not adequately address all of the relevant factors set forth in California Rules of Court, rule 7.955(b). (Petition Attachment 13a pdf pp. 24-25.) The court requires more information as to all of the relevant factors but also specifically requires more information on the time and labor required in this action. (Cal. Rules of Court, rule 7.955(b).) If Minor Claimant's counsel does not track hours for matters taken on a contingency basis, the court will accept an estimate.

The

attached Retainer for Legal Services and Power of Attorney is signed by Petitioner but does not show it was signed by Petitioner on Minor Claimant's behalf. (Petition Attachment 17a pdf p. 32.) Petitioner has not submitted the retainer agreement between Minor Claimant's counsel and Minor Claimant. A copy of the written fee agreement between Minor Claimant and Minor Claimant's counsel must be submitted as Attachment 17a. (Petition ¶ 13a pdf p. 5.)

There

are medical records attached to the Petition but they are not labeled as Attachment 8. (Petition pdf pp. 37-127.)

The records must be labeled as Attachment 8. (Petition ¶ 8 pdf p. 2.)

The

Petition states Minor Claimant has recovered completely and has no permanent injuries. (Petition ¶ 8a pdf p. 2.) The submitted medical records indicate

Minor Claimant continued to experience stiffness as of January 22, 2024.

(Petition pdf p. 117.) A report dated January 30, 2022 also indicates Minor

Claimant continued to experience psychological symptoms. (Petition pdf pp.

80-83.) These records do not support the statement Minor Claimant has recovered

completely from the effects of the injuries. (Petition ¶ 8 pdf p. 2.) The

records also do not show Minor Claimant's current condition. The court requires a medical report showing

Minor Claimant's current condition that supports the statement Minor Claimant

has recovered completely from the effect of the injuries and there are no

permanent injuries.

IV.

CONCLUSION

For

the foregoing reasons, the Petition is denied.

Dated: August 12, 2026 _____ Hon. Eric

Harmon

Judge

of the Superior Court